

KMVTECH EDUCATION**INL1 · Module 2****Subjects and personality**

Lesson: Who holds rights and duties?

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

International legal personality means capacity to hold rights and duties under international law and to bring or face claims. States are the primary subjects; international organisations, individuals and peoples have derived or limited personality.

States possess full capacity. International organisations (UN, AU, EAC) have functional personality defined by their constitutive instruments (Reparations case logic).

Individuals increasingly hold rights (human rights treaties) and duties (international criminal law). Peoples may claim self-determination in limited circumstances.

- Corporations generally act through the State of nationality; investment treaties may give them direct standing against host States.

2. DETAILED RULES AND APPLICATION

Recognition of States and governments is a political act with legal consequences. Declaratory theory dominates: a State exists when it meets the Montevideo criteria (permanent population, defined territory, government, capacity to enter relations).

Example: an unrecognised entity may still be bound by certain customary rules (humanitarian law) while lacking full treaty capacity.

Personality is not binary; ask what capacity the actor actually possesses for the claim at hand.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's membership of the EAC, AU and Commonwealth illustrates layered personality. Ugandan individuals can petition the African Commission or use domestic courts under the Bill of Rights.

Exam trap: assuming only States have any international rights, or that NGOs have the same standing as States before the ICJ.

Method: identify the actor → list capacities relevant to the dispute → cite the instrument or custom that confers them.

Links forward to jurisdiction (who can be sued) and responsibility (who is answerable).

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Who are the primary subjects of international law?
2. What is functional personality of an IO?
3. Name the Montevideo criteria.
4. Can individuals hold international rights? Give one example.
5. How does recognition differ from existence of a State?
6. Why do investment treaties matter for corporate personality?

Exam tip: Capacity is functional — match actor to claim.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.